

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT: Justice Muhammad Hashim Khan Kakar
Justice Salahuddin Panhwar
Justice Ishtiaq Ibrahim

Jail Petition No. 787/2018

(Against the judgment/order dated 10.10.2018
passed by the Islamabad High Court, Islamabad
J. A. No. 146/2017 and M. R. No. 12/2017)

Waris Masih

Petitioner(s)

Versus

The State

Respondent(s)

For the Petitioner(s):

Mr. Sagheer Ahmed Qadri, ASC

For the Respondent(s):

Nemo

Assisted by:

Mr. Muhammad Qasim Najam and
Ms. Tayyaba Munir, Law Clerks

Date of Hearing:

21.01.2026

JUDGMENT

Muhammad Hashim Khan Kakar, J. The petitioner, Waris Masih, was convicted under section 302(b) PPC and sentenced to death by the Trial Court for the murder of his wife, Mst. Jamila Bibi. He was also convicted under section 337-A(ii) PPC for causing injuries to his minor children and sentenced to undergo one year R.I. as Tazir with an order to pay Arsh @ 5% of the Diyat to the injured. Against his convictions and sentences, he preferred an appeal before the Islamabad High Court, Islamabad which was dismissed vide impugned judgment dated 10.10.2018, however, only his sentence of death was reduced to imprisonment for life. Being aggrieved, the petitioner has now approached this Court by filing the instant jail petition.

2. The facts of the case, as enumerated in the impugned judgment of the High Court, are that:

“2. As per the complaint (Exh.PM), Jangi Masih, father of Mst. Jamila Bibi/deceased, alleged that his daughter Mst. Jamila Bibi was married to the appellant/Waris Masih 15 years ago and they

have six children, whereas the appellant/Waris Masih is a drug addict, who always used to quarrel with Mst. Jamila Bibi. On 06.07.2015 in the midnight, the appellant/Waris Masih assaulted his wife Mst. Jamila Bibi and his two minors Rimsha Bibi and Ramesh by inflicting Dhandas blows. As a result, whereof, Mst. Jamila Bibi succumbed to injuries, whereas the minors got seriously injured. The main dispute referred in the complaint is a family dispute between the appellant/Waris Masih and Mst. Jamila Bibi/deceased. After formal Investigation, a report U/S 173 Cr.P.C. was submitted before the learned trial Court, charge has been framed, and the appellant/Waris Masih pleaded not guilty, on which the prosecution produced 10 PWs, and the appellant/Waris Masih recorded his statement U/S 342 Cr.P.C. On conclusion of the evidence and arguments, the learned trial Court convicted the appellant/Waris Masih and sentenced him U/S 302-B PPC to death as Tazir along with the fine and he was also convicted U/S 337-A(ii) PPC to one year R.I.”

3. We have heard the learned counsels for the parties and gone through the record in depth. In order to avoid unnecessary repetition, we have incorporated and addressed the submissions and contentions raised during the course of arguments throughout the ensuing discussion and analysis within this judgment. Though it is uncommon to obtain and present direct evidence in cases involving the death of women within their matrimonial homes due to domestic violence, however, in the present case, such evidence has been provided by an injured witness, namely, Rimsha Waris Masih (PW-4), who is not only an injured witness but also the biological daughter of the petitioner. She is, unquestionably, the inmate of the house in question where the incident occurred; therefore, her presence cannot be questioned in any way. She has pointed her accusatory fingers solely at the petitioner, holding him responsible for causing injuries to her mother and sibling.

4. In accord with this ocular account, Dr. Farrah Mazhar (PW-9) provided the medical evidence to the effect that she conducted a post-mortem examination on the deceased, Mst. Jamila Bibi, at 10 a.m. on 07.07.2015. In her opinion, the vital organs of the cranium were depressed due to bone degeneration. The probable duration between the injuries and the death was 16 hours, while the time between the death and the postmortem examination was 17 hours. In the same vein, Dr. Tanveer Afsar Malik (PW-2) conducted an examination of Rimsha Bibi and Ramesh Masih, who sustained injuries, at Poly Clinic Hospital Islamabad on 06.07.2015. The medical evidence completely corroborates the ocular account.

5. In instances of domestic violence, particularly in the event of homicidal death of a wife in the home of her husband, the latter is significantly responsible for providing a satisfactory explanation of the circumstances that led to the tragedy within the scope of Article 122 of the Qanun-e-Shahadat Order, 1984 ("**the Order**"). The conduct of an accused before, during and after a crime is also relevant under Article 22 of the Order. In the same vein, Article 129 of the Order authorizes the Court to infer adverse inferences from failure of party to submit evidence that it is capable of submitting. It is stated that the Court may assume that evidence that could be produced but is not would be unfavorable to the individual who withholds it if it were produced. The principle concerning facts peculiarly within knowledge of accused is not unique to our jurisdiction rather it is followed universally. As per well recognized legal encyclopedia of American law i.e. *Corpus Juris Secundum*, § 571, Volume 22A, the accused has the burden of proof as to a negative averment in the indictment, or a fact relied on as justification or excuse, where the subject matter thereof lies peculiarly within his knowledge. Similarly, section 106 of the Indian Evidence Act, 1872 contains similar provisions.

6. We are conscious of the settled principle of criminal jurisprudence that the burden of proving the commission of an offence rests squarely upon the prosecution, which must establish the guilt of the accused beyond reasonable doubt. In this regard Article 117 of the Order embodies the settled rule. Consequently, in cases of homicide, it is the sole responsibility of the prosecution to prove not only that a murder has been committed but also who committed the said offence, through legally admissible and credible evidence. Where the prosecution fails to discharge this burden, the benefit of such doubt must, as a matter of right, be extended to the accused being a cornerstone of criminal justice and a fundamental safeguard against wrongful conviction.

7. It is worth mentioning that where a wife is found dead inside the matrimonial home, the first and foundational question for determination is the nature of the death, namely, whether it was natural or unnatural. Once the prosecution succeeds in establishing that the death was unnatural, the next question is whether the death was the result of suicide or homicide. Upon a finding that the death was homicide in nature, the

focus of investigation necessarily turns to the circumstances surrounding the occurrence, particularly the place of occurrence. At this juncture, it becomes necessary to distinguish between the concepts of burden of proof and onus of proof, which though related, operate in distinct legal spheres. The burden of proof refers to the obligation to establish the entire case and the guilt of the accused beyond reasonable doubt, a burden which, in criminal proceedings, always rests upon the prosecution and never shifts. The onus of proof, on the other hand, pertains to the responsibility of proving a particular fact or issue, which may, depending upon the circumstances of the case, shift during the course of trial.

8. In light of the aforementioned principles, the record would indicate that the petitioner denied the circumstances that were presented to him during his examination under section 342 Cr.P.C., as indicated by the evidence presented by the prosecution. He declined to present any evidence or provide a statement under oath. The instant case abundantly establishes the fact that the death was caused by an act of causing injuries to the deceased's cranium. The petitioner maintained his silence throughout the entire trial. The record shows that the petitioner and the deceased, as well as their children, were living in the same residence. The wife of the petitioner passed away in an unnatural manner; however, he did not provide any information regarding the circumstances that led to her death. He must have provided an explanation of the events that transpired at that time. In this regard, reference can be made to a decision of the Indian Supreme Court in the case of *State of Andhra Pradesh v Gangula Satya Murthy* (AIR 1997 SC 1588) wherein it deemed a failure to offer an explanation as adverse to the accused by observing as under:

"The fact that body of (Satya Vani) was found on the cot inside the house of the respondent is a very telling circumstance against him. Respondent owed a duty to explain as to how a dead body which was resultant of a homicide happened to be in his house. In the absence of any such explanation from him the implication of the said circumstance is definitely adverse to the respondent."

9. In cases of homicidal death of a wife within the dwelling house, the accused is required to provide a plausible explanation for the circumstances, particularly his own conduct, as per Article 122 of the Order, as the facts are "*especially within the knowledge*" of the accused. The absence of any substantiation in his mere denial under section 342 Cr.P.C. is entirely insufficient. A strong adverse inference can be drawn

against him under Article 129(g) of the Order due to his failure to provide any explanation. We are aware that the prosecution is not relieved of the primary burden by Article 122 of the Order, and that the absence of explanation or falsity of explanation in the statement under section 342 Cr.P.C. can only be used as an additional circumstance when the prosecution has established the other circumstances, which led to the sole conclusion of guilt of the accused. In the event that the prosecution successfully leads evidence to demonstrate that the accused and deceased were living together and were seen together shortly before the commission of the crime, or the offense occurs in the residence, and the husband fails to provide an explanation for how the deceased sustained injuries or provides an explanation that is later discovered to be false, it serves as an additional link in the chain of circumstances against him. In this regard we are fortified by a judgment of this Court in the case of *Saeed Ahmed v State* (2015 SCMR 710) wherein it was held as under:

“14. That with regard to vulnerable members of society, such as children, women and the infirm, who were living with the accused or were last in his company the accused ought to offer some explanation of what happened to them. If instead he remains silent or offers a false explanation he casts a shadow upon himself. This does not mean that the burden of proof has shifted onto the accused as it is for the prosecution to prove its case, however, in respect of the helpless or the weak that require protection or care it would not be sufficient for the accused to stay silent in circumstances which tend to incriminate him, and if he elects to do so he lightens the burden of the prosecution. Article 122 of the Qanun-e-Shahadat Order too stipulates that if a particular fact is especially within the knowledge of any person the burden of proving that fact is upon him. In the present case the prosecution had established its case against the appellant; two eye-witnesses had deposed against him and the medical evidence confirmed strangulation of the deceased. The appellant did not attend to the last rites of his wife who had died whilst residing with him, he also did not inform the police nor took his wife to a hospital and disappeared for two months, such circumstances corroborate the prosecution case in the absence of the appellant offering a reasonable explanation for his unnatural conduct.”

10. In the event of a homicidal death of a wife within the residence, and the victim was the accused's wife who resided with him, the accused was obligated to provide an explanation for the injuries that the deceased sustained while residing in the same domicile house with him, as the deceased was discovered with multiple injuries and the cause of death was physical assault. The legal repercussions of this omission served as an additional link in the chain of circumstances in the absence of such an explanation.

11. The rationale for treating the husband as a primary suspect in cases where a wife suffers a homicidal death within the matrimonial home is not only rooted in presumption of guilt, but also in the social, legal and moral position traditionally ascribed to the cement within the family unit. The family has long been recognized across civilization and legal systems as the basic unit of society, and within this unit, the husband has historically been regarded as the head, manager and protector of the household. Classical legal and moral traditions, both religious and secular, have consistently placed upon the male head of the family a heightened duty of care, supervision, and protection towards his spouse and dependents. The Islamic jurisprudence articulates this responsibility with particular clarity. Verse 34 of Surah An-Nisa of the Holy Qur'an states that, "*Men are caretakers of women.*" The term *qawwam* in Arabic denotes one who bears responsibility, manages affairs and ensures protection and maintenance. In this sense, the husband is not merely a spouse, but a guardian of the family structure, entrusted with safeguarding its member.

12. The cases of *Nasrullah v State* (2017 SCMR 724) and *Nazir Ahmed v State* (2018 SCMR 787) are frequently cited as a point of deviation for the proposition that a husband cannot be convicted merely because the wife is found dead inside the matrimonial home. The rationale of the said judgements is firmly rooted in the settled principle that the burden of proof in criminal cases rests upon the prosecution and does not shift to the accused merely by reason of material proximity. However, a careful reading of the judgements reveal that the acquittals therein were not founded upon an absolute rejection of circumstantial reasoning in such cases, but rather upon the peculiar and fragile evidentiary matrix presented before the court. Even otherwise, the ratio of the aforesaid cases cannot be mechanically extended to all cases involving the homicidal death of a wife within the matrimonial home. In cases where there is no ocular account, no credible evidence of third-party intervention, and where the death occurs within the exclusive domain of the matrimonial household, the evidentiary landscape materially differs. In such situations, the prosecution case rests upon strong and consistent circumstantial evidence, including the place of occurrence, last seen circumstances, conduct of the accused and failure to offer a plausible explanation for facts within his special knowledge. Where these circumstances collectively form

a complete and unbroken chain, pointing irresistibly towards the guilt of the accused and excluding every reasonable hypothesis of innocence, reliance upon circumstantial evidence cannot be said to be unsafe.

13. It would also not be out of place to mention that the father of classical criminology generally considered to be the Italian nobleman and professor of law, Cesare Bonesana, Marchese di Beccaria who in 1764 published *Dei Delitti e della pene* (On Crimes and Punishment) states that:

“There are some crimes which are, at the same time, of frequent occurrence in society, and yet are of difficult proof, [...] The legislator, instead of increasing the punishment, which would only serve to multiply the number of criminals, should endeavor to facilitate the proof of the crime.”

Beccaria warns that if society relies only on torture or extreme presumptions to “*solve*” crimes taken place in secrecy, it breeds nothing of use to serve justice. But if the law intelligently shifts the evidentiary playing field (e.g., requiring the person with special access to explain), Justice can become deterrent. Hence this principle can be applied on such cases as the crime took place in secrecy of home which is in custody of husband as this is a classic “*crime of difficult proof*” and hence he cannot be given a clean chit to go free without offering at least some plausible explanation for the unfortunate event that occurred.

14. Considering the circumstantial evidence produced by the prosecution in the light of above-mentioned principles of criminal jurisprudence, the sequence of circumstances is entirely consistent with the hypothesis that the petitioner committed the murder of the deceased. These circumstances are wholly inconsistent with the theory of an unknown intruder or the petitioner’s innocence. The cascade of guilt that results from the non-participation of the petitioner in the burial rites, failure to report the crime, abscondence immediately after the occurrence until his arrest, the unnatural death of the deceased inside the matrimonial home, and the petitioner and deceased being the only adults in the house at the time of the occurrence leaves no room for any inference other than the petitioner’s involvement in the murder.

15. The Trial Court and Appellate Court meticulously examined the circumstantial and ocular evidence and correctly determined that the petitioner’s culpability was established beyond reasonable doubt. We have

not identified any errors in the application of law or the evaluation of evidence. The conviction is substantiated by a strong chain of circumstantial and oral evidence.

16. For what has been discussed above, we cannot take any exception to the impugned judgment of the High Court which is accordingly upheld and, consequently, this petition is dismissed and leave is refused.

17. Before parting with the judgment in hand, it is important to note that women, as equal members of the society, deserve unwavering protection, respect and dignity within the sanctity of their residences. Their relationship with males as mothers, sisters, wives and daughters is held in the highest regard, and it is imperative that no one be permitted to contaminate or undermine this sacred bond. We have observed in numerous instances that women are treated with extreme cruelty, sometimes compared to being "*hunted like animals*" over petty matters. This type of brutality is especially evident when spouses are struggling with drug addiction. It is imperative that the State take decisive action by implementing comprehensive legislation, enforcement mechanisms and supportive programs to halt this cruelty and safeguard the most vulnerable members of society. This must be done in accordance with the constitutional obligations outlined in Article 9 (right to life and liberty) and Article 25 (equality) of the Constitution of the Islamic Republic of Pakistan.

ISLAMABAD
21.01.2026
(Farrukh)



Approved for Reporting